

CERRUTI et al v. DEVOTO et al

17CV42758

PLAINTIFF'S MOTION TO CONSOLIDATE RELATED CASES

This is an unlimited jurisdiction quiet title action involving potential clouds over the chain of title associated with APN 052-016-009, commonly referred to as the Garibaldi Quartz Lode Mining Claim, Lot Number 45, Survey No. 3502 embracing a portion of Section 24, Township 3 North of Range 12 East M.D.M. in the Angels Mining District, Calaveras County, California (hereinafter referred to as "subject property").

Before the Court is the continued hearing on plaintiff's unopposed motion to consolidate this civil action with 21CV45366. As previously noted, both lawsuits involve claims of adverse possession to the same property by the same putative owners against many of the same defendants.

At the prior hearing, this Court made the following salient observations:

First, there was a due process concern regarding plaintiff's failure to serve Charles Devoto, Christina Huberty, Annie Austin, and Sarah Singer with the motion. Although plaintiff opined that they were "probably deceased," this Court requested more on the subject.

Second, there was a due process concern regarding the statutory rights of Charles Devoto, Christina Huberty, Annie Austin, and Sarah Singer to a dismissal of the 2017 action for failure to effectuate service. See CCP §§ 583.210, 583.250; *Inversiones Papaluchi S.A.S. v. Superior Court* (2018) 20 Cal.App.5th 1055, 1061. The statutory protection further provides that "no further proceedings shall be held in the action" (CCP §583.250(a)(1)) until the dismissal issue is resolved. This Court requested further briefing.

Plaintiff was invited to submit any supplemental filings at least 10 court days prior to the next hearing. The clerk provided notice that same day, giving plaintiff ample opportunity to address the referenced concerns in support of the motion to consolidate. Since nothing new has been filed, this Court concludes that the motion to consolidate has been abandoned and shall go off-calendar. Should the motion be refiled, for technical purposes only, this motion is deemed DENIED WITHOUT PREJUDICE.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

SARKIS et al v. ANGELS GUN CLUB et al

14CV40365

**PLAINTIFFS' MOTIONS TO COMPEL INITIAL
RESPONSES TO 136 SETS OF DISCOVERY**

This is a shareholder's derivative suit involving alleged bookkeeping and management deficiencies in a closely-held nonprofit, tax exempt association (aka social club) with approximately 150 members. Before the Court this day is a single motion, filed jointly by the three plaintiffs, to compel (1) verifications to previously served responses or (2) responses *ab initio* to outstanding discovery. The motion remains unopposed.

As an initial matter, this motion as presented is technically deficient in that it combines 136 separate motions into one. Plaintiffs are seeking 136 distinct orders, which means there are 136 motions here. (See CCP §1003.) Pursuant to Govt Code §70617, defendants must tender \$60 for each motion seeking an order even if the motions are heard together. Although one commingled memorandum is permissible (and in this case preferable), counsel still had to tender 136 filing fees. Only one \$60 filing fee was tendered, which means only one court order can issue.

In terms of which order shall issue, this Court finds that the failure to provide verifications is insular and narrow enough to be addressed in a single order. As plaintiff correctly notes, an unverified discovery response is tantamount to no response at all. (See *Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1348.) Since by law all substantive responses must be verified, this Court hereby orders all defendants to review prior discovery responses and, within 10 days, provide verifications to all previously served unverified discovery requests. (It is not clear to this Court which discovery responses lack verifications since counsel proffers in his declaration at Paras 14-18 that some verifications have been "trickling in"). This order effectively resolves 124 of the 136 discovery disputes at issue here.

Plaintiff is entitled to monetary sanctions, but not in the amount sought. Counsel's proposed blended hourly rate of \$250 is reasonable, but not the 14.8 hours allegedly invested in preparing this otherwise simple motion. This discovery was pending for over a year, and counsel only decided to seek to enforce discovery matters after the MSC failed. It seems much of the time could have been invested elsewhere. To that end, this Court awards \$560.00 for this motion (2 hours + filing fee), payable by the Levangie Law Group within 10 days.

For now, this Court declines to enter an order deeming unverified RFAs as admitted for all purposes given the passage of time since responses were provided, and the ease